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Syria: Thousands of Displaced Confined to Camps

Areas Taken from ISIS Restricting Free Movement



View from hill overlooking Ain Issa displacement camp in Syria, May 2018. © Human Rights Watch

(Beirut) – The de facto authorities of two areas of northeast [Syria](#) are unlawfully restricting the movement of people who escaped from Islamic State (also known as ISIS)-held areas in displacement camps, Human Rights Watch said today.

Authorities from the Syrian Democratic Council, a civilian authority operating in areas retaken from ISIS, and the Kurdish Autonomous Administration operate these displacement camps. They have confiscated residents' identification documents and arbitrarily prevented them from leaving. Camp confinement has increased vulnerability to exploitation, separated families, and restricted their health care access. Both authorities are constituted primarily from the Democratic Union Party (PYD).

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that restricting the movement of an already vulnerable group of people is necessary for any legitimate security or other reason.”

Human Rights Watch interviewed 24 Syrians displaced from Deir al-Zour and Raqqa, in person and remotely, who were in or had passed through four internal displacement camps – al-Hol, al-Sad, Mabrouka, and Ain Issa – between February 2017 and May 2018. They described fleeing violence and persecution, only to be captured by the Syrian Democratic Forces (SDF) or the People’s Protection Units (YPG), the armed wings of the Syrian Democratic Council and the Autonomous Administration respectively, placed in these camps, and prevented from leaving.

“We were forced to enter; some young men tried to resist entry, but the guards refused to let them go,” said a person from Deir al-Zour who passed through al-Hol camp. “If we are Syrian we had to go through the camp. And when we asked, when will you let us out, they told us, ‘Whenever we want, maybe never.’”

According to the United Nations, until May 2018, 125,642 residents from Raqqa and 248,658 from Deir al-Zour have been displaced by the fighting there. While displacement numbers have decreased, and camp populations have stabilized, according to aid groups and camp officials, the arbitrary restrictions on movement remain a concern.

The Democratic Council and Autonomous Administration, with the support of international organizations, set up six camps in Raqqa and al-Hasakeh governorates to receive the displaced residents. Two, Ain Issa and al-Hol, also house foreign nationals in separate sections. The SDF also erected multiple checkpoints to capture and screen incoming people, re-route fleeing populations to the camps, and detain ISIS suspects, residents and aid groups told Human Rights Watch.

All of those interviewed said they needed permission from the camp authorities to leave, either for government-held areas, such as Damascus and Aleppo, or to return to areas in Raqqa and Deir al-Zour that the local authorities determined was safe for return. Camp authorities and aid groups told Human Rights Watch that the camp authorities are increasingly giving permission to large segments of the population to return to areas retaken from ISIS that are safe, although it is unclear how local authorities make that determination. Some individuals said that they wanted to remain in the camp.

Most individuals wanted to go to Autonomous Administration-held areas but both sets of authorities would not allow Syrians to go to those areas without a Kurdish sponsor. The process for obtaining that sponsor is difficult and unclear. In at least one case, families paid a Kurdish resident to sponsor them. Displaced people have the right to choose their own residence and to move freely throughout areas under the control of the Autonomous Administration and Democratic Council. The obstacles to getting Kurdish sponsorship, as well as lack of transparency for how safe areas for return are identified, constitute unlawful arbitrary restrictions.

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Human Rights Watch met with officials from both authorities, including the camp authorities themselves, in May and raised concerns regarding the unlawful movement restrictions. On July 9, Human Rights Watch also wrote to both sets of authorities asking them to provide the basis for the restrictions on displaced civilians from Raqqa and Deir al-Zour. Human Rights Watch has not received a response to the letter.

The policy in these areas violates international legal guarantees of the right of displaced people to freely move in the area of displacement unless specific conditions calling for restrictions exist, Human Rights Watch said.

In terms of families with suspected ISIS ties, international law allows imposing punishment for crimes only on people responsible for the crimes, after a fair trial to determine individual guilt. Imposing collective punishment on families by preventing them from leaving violates the laws of war. The local authorities have told Human Rights Watch they are not planning to bring charges against foreign women who were married to ISIS members and their children. The authorities should seek to deport them to their own countries if it can be done safely and with their home countries' cooperation. The restrictions on them should be eased while they are in the camps.

The authorities should revoke unlawful restrictions on free movement of internally displaced people, including those displaced because of the ongoing fight against ISIS. Restrictions should only be imposed if "provided by law ... and necessary to protect national security, public order, public health or morals, or the rights and freedoms of others," as outlined in the International Covenant on Civil and Political Rights. Any restrictions must be nondiscriminatory, in accordance with national law, and "necessary" to achieve legitimate aims. The restrictions must also be proportionate – that is, carefully balanced against the specific reason for the restriction.

Detention should only be imposed according to law, on an individual basis, and with all detainees given the basic rights of detainees under international law, including judicial review of detention. Anyone responsible for imposing arbitrary detention or collective punishment should be prosecuted for possible war crimes.

Camp authorities indicated that they were doing the best they could providing humanitarian assistance, as well as supporting the displaced populations, and that the situation is improving as areas retaken from ISIS are announced safe, and families return to their place of origin. With regard to families of members and suspects of ISIS families, the camp authorities indicated that the restrictions on movement were due to security concerns arising from ISIS members and their families interacting with the general population.

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freely in areas held by the Autonomous Administration until it is safe for them to go home.”

The Families’ Accounts

Camps in al-Hasakah governorate are administered by the Autonomous Administration, while camps in Raqqa governorate are managed and controlled by the Syrian Democratic Council, aid groups operating in the area said. While camps are administered by local authorities operating in the area, services are managed by nongovernmental organizations, both international and local.

Witnesses told Human Rights Watch that when they crossed into territories held by the Autonomous Administration or Syrian Democratic Council from ISIS-held areas, armed guards would stop them at checkpoints, confiscate their identity documents, and take them to one of the camps. Once in the camps, they said, the SDF or the local police, known as the Asayish, would prevent residents from leaving. In al-Sad (also known as Areesheh), al-Hol, and Mabrouka, there were armed guards dressed in uniforms of the armed groups.

In 23 of the 24 cases Human Rights Watch documented, interviewees said their and their families’ identity documentation, including passports and vehicle registration, was confiscated at the checkpoints and later held by the Autonomous Administration and Democratic Council camp authorities. The remaining interviewee did not carry an identity document. Lack of documentation increases the vulnerability of displaced people, preventing them from getting services, traveling, or confirming their identity.

One person said:

Once they took my documentation, it was over. I would not leave even if I could walk out with my own two feet. Where would I go without my documentation? It is so hard to live in this country, even with IDs, and without? I would not be able to do anything, not get aid, not rent a house, nothing.

In nine cases, residents told Human Rights Watch they were not allowed to enter predominately Kurdish Autonomous Administration-held territory even where their relatives lived there. Every displaced person who had left the camps when they spoke to Human Rights Watch had paid money to a smuggler or official to hasten the process or provide them with necessary permissions.

Lack of freedom of movement and economic opportunities in the camp also led residents to join the armed groups in exchange for money or their family’s release from camps. Interviewees also said that medical facilities in the camps did not have the capacity to deal with all ailments and did not have medicine for more complex illnesses, but that they were unable to leave the camps to get

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Authorities are legally responsible to allow residents and displaced persons to move freely in their areas, provide adequate medical aid and access, and not conscript displaced people in return for freedom, Human Rights Watch said.

Treatment at Checkpoints

All 24 individuals interviewed said they passed through checkpoints erected by the SDF and the People's Protection Units. They said that if they arrived at the checkpoint at night, they had to wait until sunrise, when armed guards would search them and request their identification documentation. In the majority of cases, the interviewees identified which armed group staffed the checkpoint.

They said the armed group would conduct an initial security screening. They would confiscate identification cards, compare the names to those on a list, and separate men and women and inspect them carefully. In seven cases, residents said they saw the authorities pull young men aside on suspicion of being ISIS members, and that they did not know what happened to them.

Confiscation of Documentation

In 23 cases, the armed guards at the checkpoints confiscated the families' civil documents, including passports, ID cards, family books, and vehicle registration documents. Residents said the camp authorities kept the documents in disorganized piles in rooms with thousands of other IDs.

In eight cases, when they finally left displacement camps to smuggle themselves across the border into Turkey, residents left without their identification, either because the documents could not be found or because they left unofficially. For many other residents, leaving without their documentation was not viable, causing them to remain confined to the camps.

When Human Rights Watch visited two of the camps, two camp residents said that they had registered to leave to return their town or village, or go to another area retaken from ISIS that had been labeled safe. But they had not been able to leave because the authorities had not returned their identification. One man, who had been trying to leave since February, said:

I asked to leave, I tried everything. I went to the archive [camp records office] two months ago to ask for my identification documents to be able to leave. They said that the archive is closed to these requests. Then they said we can't give them back to you to go to this area, and when I asked why, they said these rules come from the top. They took my family book, all our IDs. I am married with eight kids – we are 10 in total. Here, there is no work, no nothing. Dead end. I go to them every day, and every day they say no we cannot help you. And I can't leave without my identification documents.

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the five camps and investigated restrictions on freedom of movement there.

Ain Issa, in the Raqqqa governorate, hosts Syrians and Iraqis and families of suspected ISIS foreign fighters. It provides the greatest degree of freedom of movement for the general Syrian population. With permission, Syrians can leave to go the market, conduct visits, and seek treatment at medical centers as required. However, authorities placed a complete ban on departure for Iraqi families and other foreign families whose relatives were ISIS suspects.

In al-Sad (also known as Areesheh), which hosts displaced families from Syria, restrictions were more onerous. For temporary leave and visitation, residents were provided with a temporary exit permission only if they could prove a severe medical need or were registered at the local university. They can only leave on two days of the week and bear the cost of obtaining the permission and transportation. Camp authorities restrict the number of residents who can leave the camp to 30 per designated day.

Al-Hol, a camp co-managed by UNHCR, the United Nations refugee agency, and Autonomous Administration authorities, hosts both Syrian and Iraqi populations, including families of ISIS members and suspects. Families of ISIS suspects are not allowed to leave the camp, though camp authorities will provide them with temporary permits for medical visits.

Exploitation, Collective Punishment, and Family Separation

In nine of the cases investigated, families were not able to get a sponsor to return to predominately Kurdish Autonomous Administration-held areas, even if members of their families lived in those areas. In one case, a man was stuck in the displacement camp while his wife lived in a house near the camp in al-Hasakeh because her family had residency there but he, as a resident of Deir el-Zour did not. "It was ironic; I could see her [the house] from the camp; I just could not get to it," he said.

Movement restrictions and document confiscation also made residents more vulnerable to exploitation. Every displaced person interviewed who had left the camps had paid a smuggler or official to hasten the process or get necessary permissions. One resident said that he paid US\$5,000 to get out of the convoy going to the camp but was taken there anyway. A second resident said he paid over 1 million SYP (approximately US\$4,660) in his attempts to leave the camp with his family. Residents said that brokers would spend time in and around the camp, soliciting business.

One resident said:

I tried to obtain permission for myself and my family to leave five times. First, I tried to pay a Kurdish sponsor, but the authorities refused to provide permission. Then, I told them I would go to Damascus and they refused. I asked to return to Deir al-Zour and they refused as well.

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One witness said that someone with the camp authorities offered to sell him an ID that was not his after he had paid the person to allow him to leave the camp. In four cases, people said the SDF offered to let their families out of the camp if they or a relative agreed to conscription. One resident said that after spending three months in camp, his friend agreed to join the armed group for his family to be released.

In three cases, one involving an Iraqi family, the authorities appeared to be collectively punishing families by not allowing them to leave camps, even temporarily, because they had a relative who was an ISIS suspect or member. One man in al-Sad, who was Kurdish and from al-Hasakeh, to whom generally restrictions on sponsorship do not apply, said that the local authorities refused to let his family leave because his son had been an ISIS member for 15 days. He said that the Asayish had arrested his son and released him back into the camp, but that they could not leave.

Medical Treatment and Access to Basic Necessities

All camps had a medical station run either by the Red Crescent or Medecins San Frontieres. In 10 cases, interviewees said they or a family member in the camps required medical aid, but that the medical station could not provide it.

Three people said that the medical station did not have the capacity to deal with all ailments and did not have medicine for the more complex illnesses, and all 10, they said that the medical station was overwhelmed and did not have the medicine that they needed. In these cases, the authorities often referred camp residents to hospitals in neighboring areas in the governorate. Three people who received permission said they were required to return to the camp at a specified time. One person who had permission could not go because they could not pay for the service.

One family said that during their two-week stay in al-Sad in December 2017, six children and seven adults died from dehydration, poisoning, or diarrhea. Aid workers attributed the deaths to the lack of sufficient medical care and humanitarian aid for the large numbers of displaced people in the camps.

When Human Rights Watch visited al-Hol, al-Sad, and Ain Issa in May, it appeared that while the population has stabilized, medical care for people with serious conditions remained insufficient and residents were required to pay their own way for treatment in al-Hasakeh – which many were unable to do.

All camps distributed food packages, either for cooking or packages of prepared food.

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